

**JUSTIFICATION & APPROVAL FOR FEDERAL ACQUISITION REGULATION
SUBPART 16.5 ACQUISITIONS
EXCEPTION TO FAIR OPPORTUNITY**

Multiple Award Contract
Orders under Fair Opportunity
Federal Acquisition Regulation (FAR) 16.505, Defense FAR Supplement 216.505-70,
Procedures, Guidance, and Information 216.505-70

Purchase Request Number: To Be Determined (TBD)
Joint Warfighting Cloud Capability (JWCC) Contract Number: HC105023D0005
Task Order (TO) Number: TBD
Procurement Title: Research & Development Space & Missile Operations (RDSMO) Cloud-
Hosted Ground System Buildout
Estimated Value: [REDACTED]
Statutory and Regulatory Authority: 10 United States Code (U.S.C.) 2304c(b) and FAR
16.505(b)(2)(i)(B)

EXCEPTION TO FAIR OPPORTUNITY

Number: JA25-013

Upon the basis of the following justification, I, as the Procuring Activity Competition Advocate (PACA), hereby approve this exception to fair opportunity pursuant to the Statutory Authority of 10 U.S.C. 2304c(b) and Regulatory Authority of FAR 16.505(b)(2)(i)(B).

1. REQUESTING AGENCY AND CONTRACTING OFFICE:

Requesting Agency:

United States Space Force / Space Systems Command, Innovation and Prototyping
Acquisition Delta / Prototype Ground Development and Sustainment Branch (SSC/SZIG)
3548 Aberdeen Ave SE
Kirtland AFB, NM 87117
United States of America

Contracting Activity:

Defense Information Systems Agency (DISA)/Defense Information Technology
Contracting Organization/PS8511
2300 East Drive
Scott Air Force Base, IL 62225-5406

2. NATURE/DESCRIPTION OF ACTION(S): This action is to issue a firm-fixed-price TO against the JWCC Indefinite Delivery/Indefinite Quantity Contract for RDSMO Cloud-Hosted Ground System Buildout. This TO will be issued directly to Amazon Web Services (AWS). The anticipated period of performance (PoP) is for a base period of 12 months, with two, 12-month option periods. The total estimated value is [REDACTED] which will be funded by Research, Development, Test & Evaluation funds.

Controlled By: DISA
Controlled By: PS8511
CUI Category: PROCURE
Distribution/Dissemination Control: FEDCON
POC: disa.scott.ditco.mbx.ditco-jwcc@mail.mil

3. DESCRIPTION OF SUPPLIES/SERVICES: This requirement is for Unclassified Impact Level (IL) 4 cloud to augment existing on-prem network (creating a hybrid on-prem / cloud network) and professional services to continue building out the IL4 cloud and for compiling Authorization to Operate (ATO) artifacts for the IL4 cloud to comply with Department of Defense (DoD) Instruction 8510.01.

4. SUPPORTING RATIONALE, INCLUDING A DEMONSTRATION THAT THE PROPOSED CONTRACTOR'S UNIQUE QUALIFICATIONS OR THE NATURE OF THE ACQUISITION REQUIRES USE OF AN EXCEPTION TO FAIR OPPORTUNITY:

(a) Exception to Fair Opportunity.

FAR 16.505(b)(2)(i)(B) - Only one awardee is capable of providing the supplies or services required at the level of quality required because the supplies or services ordered are unique or highly specialized.

(b) Description of the Justification.

The justification is based on current mission requirements with long transition times.

The Nebula Program is the Space Systems Command's Innovation and Prototyping Delta's #1 priority. Nebula's ability to perform satellite operations in the cloud is critical for upcoming Calendar Year (CY) 25 missions. A cloud service provider (CSP) change would have operational impacts to all Delta missions as this system supports connectivity to command & control antenna networks.

Currently, AWS is the only CSP that has road mapped a cloud-based Cross-Domain Solution (CDS) and cryptography. These cloud capabilities are critical to realizing a true cloud architecture and AWS is the only CSP currently offering these specific capabilities. Using another CSP would require the government to need a low-side AWS cloud environment as the Space Rapid Capabilities Office (SpRCO) hosting their missions in an AWS cloud instantiation. This would lead to more complex integration between SSC/SZIG's and SpRCO environments and delays to schedule.

The Nebula program supports real-time space operations. A CSP change would be considered an unacceptable high risk and schedule delays to CY25 missions.

(c) Justification.

(1) Minimum Government requirements.

The cloud service offerings must continue at their current level in order to support the minimum Government requirements as follows:

- Hosting unclassified mission software
 - o Unclassified (Black) Front End Processors

- Astrodynamics Software
 - Antenna broker software with Satellite Control Network Plugin
- Centralized log aggregation of on-premises hardware components and cloud-hosted server logs
- Ability to monitor network hardware status.
- Automated Compliance Assessment Solution scanning of on-premises hardware components.
- User account management, multifactor authentication, network access via Non-Secure Internet Protocol Router.
- Creating and maintaining a DoD Cloud IaC Baseline
 - A collection of preconfigured templates that use automation to build secure cloud environments, managed by the DISA J9 Hosting and Compute Center office.
 - The IaC Baseline needs to employ 6 accounts: Central commercial, central, logging, transit, management services, and mission application tenant accounts.
- Maintain the cloud architecture, participate in configuration management artifact generation, work with other development contractors to integrate plugins and tools, and continue to maintain and troubleshoot the system after deployment to production.

(2) Proposed sole source contractor. AWS

(3) Discussion regarding the cause of the sole source situation.

The only source capable of performing the RDSMO Cloud-Hosted Ground System Buildout at the level of quality required is the incumbent contractor, AWS. The refactoring of the current environment from the AWS environment to another CSP would result in additional cost and time. Migration from one platform to another platform would significantly delay the project, incur more complex technical, cybersecurity, and configuration management, and operational impacts. In addition, there would be a duplication of costs of having to keep the solution running on one platform while refactoring it on another platform and, another CSP would devote time building technical & programmatic knowledge with a new professional services provider. The transition time would be approximately 24 months.

Further, the only source capable of performing the RDSMO Cloud-Hosted Ground System Buildout at the level and quality required is AWS, based upon Government engineers being trained and certified in AWS's unique offerings and services. SSC/SZIG initially onboarded to Commercial Cloud Enterprise contract with an Enterprise Ground System task order. The management of this task order became complex and required the Government to seek a new avenue for cloud. This, alongside the fact that SSC/SZIG previously decided to move to a cloud environment rather than procuring an on-prem compute stack to implement many of the cyber-ATO controls. These controls were required by the current on-prem network's Authorizing Official (AO). The SSC/SZIG was required to implement a hybrid cloud environment quickly to satisfy the existing cyber controls needed to be met for the existing on-prem network. These controls would

need to be edited and reimplemented, as mentioned above. Therefore, there is insufficient time to retrain and obtain certification in another platform/technology.

(4) Demonstration of unique source.

AWS is the only CSP capable of providing the cloud-native CDS between this JWCC unclassified hybrid cloud environment and an existing SSC/SZIG Top Secret AWS environment. AWS is also the only CSP that has cloud-based cryptography road mapped. Given these critical mission requirements, AWS is the only CSP that can perform the necessary services for the DoD within the current required timeline.

(5) Procurement discussion.

The program is currently procuring services through the Commercial Cloud Enterprise contract. The TO being utilized is sole sourced to AWS. Since October 2022, the program has expended over a million dollars on an AWS-specific solution, including IaC, an architecture based on an AWS specific CDS, and integration with the AWS solution procured by the SpRCO; a critical mission partner for the Delta. Due to this, AWS is the only CSP capable of fulfilling the on-time delivery of this system for CY25 mission requirements.

SSC/SZIG is looking to obtain a JWCC TO as soon as possible as the current cloud services contracts has become increasingly difficult to manage due to lack of support with current cloud services. This would allow the existing AWS IaC to be re-deployed in our new JWCC accounts, which will then allow SSC/SZIG to quickly submit the full ATO package to Space Operations Command S3/6 for a full hybrid ATO. As soon as the ATO is awarded, SSC/SZIG can work on connecting the cloud portion of the network to the on-prem portion of the network via a connection to the DISA Boundary Cloud Access Point. The timeline for this work is linear and needs to be accomplished as soon as possible to meet SSC/SZIG mission requirements.

(6) Impact.

The program would be unable to leverage AWS's cloud-native CDSs. The program would have to completely restart the Risk Management Framework process. The Information Technology Categorization and Selection Checklist would need to be accomplished, the 446 controls will then need to be approved by the AO, and then implemented within the system resulting in approximately eight months of additional work and funding to program cybersecurity contractors.

5. COST/PRICE FAIR AND REASONABLE DETERMINATION: A determination that the price is fair and reasonable will be based on a comparison of the contractor's proposal to the independent government cost estimate and the JWCC Catalog pricing, including any discounts, which was previously found to be fair and reasonable and based on the contractor's commercial pricing.

6. MARKET RESEARCH: Market research for the basic JWCC Contracts was conducted and resulted in a signed market research report on November 9, 2021, that was revalidated and recertified on July 29, 2024. After a survey of the market, it was concluded that the JWCC Contract is in the Government's best interest due to technical feasibility and cost to the Government.

Additional research was conducted by SSC/SZIG on Aug 29, 2024, by reviewing the specific capabilities in the JWCC Contracts and it was determined that AWS is the only source capable of fulfilling the Government's minimum needs in the manner and time frame required. The Additional Research to Support Exception to Fair Opportunity was sent out to all CSPs. Microsoft and AWS were the CSPs that responded; Google Public Sector and Oracle did not respond. Review of Microsoft's capabilities indicated they do not have the required cloud based CDS or cryptography service available or road mapped.

7. ANY OTHER SUPPORTING FACTS: None

8. ACTIONS THE AGENCY MAY TAKE TO REMOVE OR OVERCOME BARRIERS THAT LED TO THE EXCEPTION TO FAIR OPPORTUNITY:

(a) Procurement History:

Incumbent Contractor: AWS

Contract Number: 2120101900401

TO Number: FA703722FU010

PoP: October 24, 2022 – September 30, 2026

Competitive Status: Exception to Fair Opportunity

Business Size: Large business

(b) To support an exception to fair opportunity for 2120101900401/ FA703722FU010, a justification and approval (J&A) was signed on September 20, 2022, by The Competition Advocate. The previous J&A was based on FAR 16.505(b)(2)(i)(b), as AWS was the only CSP capable of providing the required CDS and cryptography services. Despite the Government's efforts, an additional exception to fair opportunity is required because AWS is still the only CSP capable of providing the required CDS and cryptography services.

To overcome future barriers to competition, future development and enhancement of Infrastructure as a Service components will include shifting to a containerized platform. This will enable multiple CSPs to meet the requirements which will enable the flexibility to shift workload based on financial and mission requirements.

TECHNICAL CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Capt Ryan Seigny

SIGNATURE: [REDACTED]
[REDACTED]

Program Manager, RSC CUE & COMM, United States Space
Force (USSF), SSC/SZIG

PHONE: [REDACTED]

DATE:

REQUIREMENTS CERTIFICATION: I certify that the supporting data under my cognizance which are included in the J&A are accurate and complete to the best of my knowledge and belief.

NAME: Capt Ryan Seigny

SIGNATURE: [REDACTED]
[REDACTED]

Program Manager, RSC CUE & COMM, USSF, SSC/SZIG

PHONE: [REDACTED]

DATE:

CONTRACTING OFFICER CERTIFICATION: I certify that this justification is accurate and complete to the best of my knowledge and belief.

NAME: Lara Chiaurro

SIGNATURE: [REDACTED]
[REDACTED]

TITLE/AGENCY/ORGANIZATION: JWCC Contracting
Officer, DISA/DITCO/PS8511

PHONE: [REDACTED]

DATE:

PACA APPROVAL: I have reviewed this justification and find it to be accurate and complete to the best of my knowledge and belief. Since this justification does not exceed \$15M, this review serves as approval and my written determination that the aforementioned FAR circumstances apply.

NAME: Gay Arnold

SIGNATURE: [REDACTED]
[REDACTED]

TITLE/AGENCY/ORGANIZATION: PACA

PHONE: [REDACTED]

DATE:

ALL QUESTIONS REGARDING THIS JUSTIFICATION ARE TO BE REFERRED TO:
Emelie Vandello, [REDACTED]